

MASTER SERVICES AGREEMENT

Contract ID (internal): CTR-0001 **Contract Name:** Stratos Cloud — Enterprise Hosting MSA

1. Parties

This Master Services Agreement (“Agreement”) is entered into between **Nimbus Retail Co.** (“Customer”) and **Stratos Cloud Services, Inc.** (“Supplier”), collectively the “Parties”.

2. Term

Effective Date: June 1, 2024 **Initial Term:** Twenty-four (24) months, ending **May 31, 2026**.

3. Renewal

This Agreement shall **automatically renew** for successive twelve (12) month periods (“Renewal Term”) unless either Party delivers written notice of non-renewal no less than **sixty (60) days** prior to the end of the then-current term.

4. Fees and Payment Terms

- **Total Contract Value Cap:** USD 1,800,000 across the Initial Term.
- **Payment Terms:** Net 60 days from the date of a valid invoice.
- **Currency:** USD.
- **Price Escalation:** Supplier may increase list pricing by up to 4% per Renewal Term upon ninety (90) days written notice.

5. Scope of Services

Supplier shall provide managed enterprise hosting, including (a) compute and storage provisioning, (b) 24x7 L2/L3 support, (c) quarterly capacity reviews, and (d) incident management.

6. Service Level Agreement

- **Uptime Commitment:** 99.95% monthly availability, measured end-to-end.
- **Severity 1 Response Time:** 15 minutes.
- **Service Credits:** 5% of monthly fees per 0.1% below target, capped at 25% of monthly fees.

7. Termination

Either Party may terminate for material breach upon thirty (30) days written notice and failure to cure. Customer may terminate for convenience upon ninety (90) days written notice, subject to payment of fees for services rendered through the termination date.

8. Governing Law

This Agreement shall be governed by the laws of the State of Delaware.

Signatures

For Nimbus Retail Co.: Naomi Weiss, CFO For Stratos Cloud Services, Inc.: Authorized Signatory